

		contends that the clients wish to terminate their retention of her as counsel and do not oppose relief. On July 14, 2023, a substitution of attorney relating to Dominique Jackson was filed, who consented to being self-represented. [ROA #100.] On July 14, 2023, a substitution of attorney relating to Carlos Jackson was filed, who consented to being self-represented. [ROA #102.] On July 17, 2023, substitution of attorney relating to Bianca Jackson was filed, who consented to being self-represented. [ROA #108.] Given the substitutions of attorney, the court denies the motion as moot. Court to give notice.
5	Account Management Services, Inc. v. Southland Family and Urgent Care, Inc.	TENTATIVE RULING: <u>Motion to Set Aside Default and Default Judgment.</u> Defendants Southland Family and Urgent Care, Inc. and Konstantinos U. Melahoures, M.D. move to set aside the default and default judgments entered against them. For the following reasons, the motion is DENIED. Code Civ. Proc. § 415.20(b) covers substitute service on defendants: “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section ... 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail.... to the person to be served

	at the place where a copy of the summons and complaint were left...” Substitute service on an entity does not require a showing that the summons cannot with reasonable diligence be personally delivered to the entity defendant. (See, Code Civ. Proc., § 415.20(a).) Here, the proofs of service filed on September 30, 2022, state that service was effectuated by means of substituted service. As to Defendant Melahoures, the proof of service includes a declaration of diligence executed by Mario Gomez. (ROA 11.) The declaration states that Gomez attempted to serve Melahoures on two separate occasions at 27660 Santa Margarita Pkwy, Mission Viejo, CA 92691. (Id.) Defendant Melahoures concedes his business is located at that address. (Melahoures Dec., ¶ 6.) The receptionist evidently told Gomez that Melahoures was “not in” on both days in which Gomez attempted service. (ROA 11.) Defendant contends that Plaintiff did not show reasonable diligence because Plaintiff did not attempt service at Defendant’s residence. As Defendant recognizes, however, two or three attempts to personally serve defendant at a “proper place” (including a usual place of business, which is where Defendants were served) ordinarily qualifies as “reasonable diligence.” (<i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Plaintiff has shown two attempts at service at Defendant’s business address. Defendant contends that the receptionist at the business was not authorized to accept service on behalf of Defendant, but Defendant does not dispute that the receptionist was a person “apparently in charge of his or her office [or] place of business.” (Code Civ. Proc. § 415.20(b).) Plaintiff has sufficiently shown reasonable diligence in attempting personal service on Defendant Melahoures. Defendants do not contest that substitute service was sufficient on Southland. A review of the proof of service shows that service was indeed sufficient on Southland. (ROA 9.) Defendants seek relief under Code Civ. Proc. § 473.5. Section 473.5 is designed to provide relief where there has been proper service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (<i>Randall v. Randall</i> (1928) 203 Cal. 462, 464-65; <i>Trackman v. Kenney</i> (2010) 187 Cal.App.4th 175, 180.) Section 473.5 states:
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(a) When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (Code Civ. Proc. § 473.5.)

A motion under Section 473.5 must be accompanied by a declaration showing (a) defendant's lack of notice of the action in time to defend; and (b) that such lack “was not caused by his or her avoidance of service, or inexcusable neglect.” (Code Civ. Proc. § 473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319; *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 274-75.) Defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (Code Civ. Proc. § 473.5(b).)

Section 473.5 provides that “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.” (Code Civ. Proc. § 473.5(a).)

Here, Plaintiff shows that Defendants knew of the lawsuit in time to defend the action. Plaintiff’s counsel provides evidence that Defendant called Plaintiff’s counsel’s office on July 20, 2022, and spoke to Plaintiff’s president well before Defendants’ defaults were entered. (Moss Dec., ¶ 6 and Ex. 2; Bemis Dec., ¶ 5.) During that conversation, Defendant Melahoures requested and was granted an extension of time to file an answer until August 30, 2022. (Ibid.) Defendant Melahoures again called and spoke with Plaintiff on August 9, 2022. (Moss Dec., ¶ 6.)

Additionally, Section 473.5 requires that a motion for relief under that section must be filed “within a reasonable time.” The Court’s records reflect that Defendants attempted to file an Answer on November 17, 2022, the day after the judgment was entered. (ROA 32.) Defendants’ counsel also served this answer on Plaintiff’s counsel on November 17, 2022, by mail and email. (Bemis Dec., Ex. 101.) Although the judgment was entered on November 16, 2022, and Defendants attempted to file an Answer on November 17, 2022, Defendants did not file any motion seeking relief until June 29, 2023 - more than seven months later. The motion was not filed and served within a reasonable time.

		Further, Defendants did not file a proposed answer with the motion and thus did not comply with Code Civ. Proc. § 473.5(b). (Code Civ. Proc. § 473.5(b) (“The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.”).) Instead, they filed the proposed answer with their Reply papers, which does not comply with Section 473.5(b). Plaintiff’s request for judicial notice of the Court’s docket and certain documents filed in this matter is denied as it is unnecessary to take judicial notice of materials previously filed in this case. Plaintiff to give notice.
6	Rinner v. Hoyt	CONTINUED TO 11/1/23
7	BMO Harris Bank N.A. v. Caduceus Physicians Medical Group	TENTATIVE RULING: For the reasons set forth below, Plaintiff BMO Harris Bank N.A.’s Applications for Right to Attach Orders and Issuance of Writs of Attachment are DENIED. No order or writ shall be issued under this article except after a hearing. At the times prescribed by subdivision (b) of Section 1005, the defendant shall be served with all of the following: (a) A copy of the summons and complaint. (b) A notice of application and hearing. (c) A copy of the application and of any affidavit in support of the application. (Code Civ. Proc., § 484.040; see Code Civ. Proc., § 1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing”].) “Attachment procedures are purely a creation of statute and it has been held that such statutes are subject to strict construction.” (<i>Commercial & Farmers Nat. Bk. v. Hetrick</i> (1976) 64 Cal.App.3d 158, 165.) Courts have an obligation to strictly construe the purely statutory remedy of pre-trial attachment. (<i>Hobbs v. Weiss</i> (1999) 73 Cal.App.4th 76, 77-78; see <i>Royals, supra</i>, 81 Cal.App.5th 328, 345 [to be entitled to obtain a writ of attachment, and to protect the